



BUILDINGS 2026-009 BULLETIN TECHNICAL

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PURPOSE: This Bulletin clarifies when a UPS can be used as an emergency power source without special permission.

SUBJECT(S): Fire Alarm System, Emergency Voice/Alarm Communications System, In-Building Auxiliary Radio Communication System (ARCS), Uninterruptible Power Supply, Uninterruptible Power Source, Uninterruptible Power System

RELATED CODE SECTIONS & RESOURCES:

2025 NYC EC 700.12(E), BC 2702.2.1.1, §28-105.1. §28-116.2.4

I. BACKGROUND

The 2011 NYC Electrical Code (EC) requires special permission when using an Uninterruptible Power Source/Supply (UPS) system as a source of power for emergency systems. The 2025 NYC EC, section 700.12(E), allows the use of a UPS as a source of power for emergency systems without special permission. However, where a stationary generator is installed in accordance with the 2022 NYC Building Code (BC), a UPS may not be used as the source of power for loads that require emergency power.

Installing a stationary generator as required by the BC for certain buildings may pose a hardship in some existing buildings that do not have adequate space to install such stationary generator and its supporting equipment (i.e., fuel oil pumps, transfer switches, fuel oil risers, electrical risers, etc.). In the past, in those situations the Department allowed, with special permission, the installation of a UPS as a source of emergency power under conditions set forth in Section III of this Bulletin, if the required load to be connected to such emergency system was for a fire alarm system with emergency voice/alarm communications.

This Bulletin clarifies when a UPS may be used without special permission and provides the conditions for allowing the installation of a UPS as a source of emergency power dedicated for a fire alarm system or in-building Auxiliary Radio Communication System (ARCS).

This Bulletin does not address lead-acid UPS units used for non-emergency power as those units will be covered under a separate Buildings Bulletin.

II. SYSTEMS PERMITTED TO BE CONNECTED TO A UPS

Where a stationary generator is not installed in a building, a UPS may be permitted to be used in accordance with Section III of this Bulletin, in lieu of a generator, for the following systems:

- Fire alarm system, including system with emergency voice/alarm communications.
- In-building ARCS, where provided.

A fire alarm system and in-building ARCS must be supplied by a stationary generator when such generator is installed.

Emergency power source must be provided where required by the New York City Construction Codes.

III. UPS USE ACCEPTANCE CRITERIA

Where a stationary generator is not installed in a building, a UPS may be used to supply emergency power to a fire alarm system or in-building ARCS. Such UPS must comply with the following:

A. UPS Battery and System Standards

1. The UPS battery used must be limited to Lead Acid technology.
2. The UPS system and its installation must be compliant with the NFPA 111-2013 Standard on Stored Electrical Energy Emergency and Standby Power Systems and must comply with any additional requirements as prescribed by the requirements of NFPA 72 as modified by Appendix Q, which allows the use of batteries as a secondary power supply.
3. The batteries of the UPS system must be UL 1989 or UL 1973 listed, and the UPS system must be UL 1481 listed.
4. The UPS must be sized to support the full fire alarm system load and the full ARCS system load for a period of not less than six hours.
5. The UPS needs to be labeled with a red placard, and white lettering, stating it is a UPS for the fire alarm system and ARCS and that no other systems can utilize it.
6. The UPS must be dedicated to the fire alarm system and ARCS and must not supply or provide back-up to any other electrical load.
7. The aggregate capacity of the UPS must not be greater than 70 kilowatt hours.
8. The operation and maintenance must comply with section 604 of the FC and NYC EC.

B. UPS Room Requirements

1. The room containing the UPS system must comply with the 2022 Fire Code (FC) with respect to indoor battery installation requirements, including but not limited to smoke detection, location and monitoring. FDNY Certificate of Approval per FC 608.5 and FC 112 is not required. Additionally, UPS's location must also comply with NFPA 111 Section 7.2. and Building Code Appendix G.
2. The ventilation of the UPS room must comply with 2022 NYC Mechanical Code section 502.4.
3. A fire suppression system must be provided for the room containing the UPS system, when required, per BC 903.2. When the UPS room contains only electrical equipment, an automatic sprinkler system is not required, provided the additional requirements of the exception contained in section 903.2 are met. Where a fire suppression system is provided, it must comply with NFPA 111 Section 7.4.2.
4. Smoke detection must be provided in accordance with BC 907.2.23 in the UPS room.
5. UPS and its associated system components must be in a 2-hour fire-rated room.

C. Fire Alarm System Monitoring of the UPS System

1. The UPS must be monitored for the trouble signal on the fire alarm system. Where the UPS system is not capable of providing a trouble signal output, other means of monitoring, approved by the Fire Commissioner, may be accepted.

2. If trouble or supervisory signals are received by the building's fire alarm system from the UPS and such UPS system is determined to be completely discharged/non-operational, the protected area must not be occupied, unless compliance with FC 901.7 would allow occupancy of such space or the UPS and corresponding trouble signal is corrected.
3. Primary power supplying the UPS must be monitored, and loss of primary power must send a supervisory signal to the fire alarm system.

IV. PERMIT & INSPECTION

An electrical permit must be obtained by a New York City licensed electrical contractor, per the 2022 NYC Administrative Code (AC) §28-105.1. Final electrical inspection sign-off must be obtained after the installation is completed, per AC §28-116.2.4. Depending on the scope, additional permits may be required.